



THE JAMAICA CONSTABULARY FORCE

Electronic Control Weapons Policy and Standard Operating Procedures

Title: Electronic Control Weapons Policy and Standard Operating Procedures	Identification Code : JCF/FW/PL/Ops/0008/2022
Effective Date: 2024-Nov-21	Pages: 13
Last Reviewed: 2024-Nov-18	Distribution: Force-wide
Revision version #: 1	Process Owner: Deputy Commissioner of Police Strategic Operations Portfolio
Rescinds: F.O. 3784 Sub. No.1 d.d 2019-Dec-12	
Authors: ACP Operations Branch	Owner: JCF
First Published: F.O 3784 d.d 2019-Dec-12	Review: Biennially

Table of Content

Introduction	3
Purpose.....	3
Scope.....	3
Abbreviations and Acronyms.....	3
Definition.....	3
Roles and Responsibility.....	4-6
Policy Statement.....	7
Standard Operating Procedures.....	8
Legislative Authority.....	11
Relevant Records and Forms.....	11
Appendix1 JCF Electronic Control Weapons Register Issue.....	12
Appendix 2 JCF Electronic Control Weapons Register Return.....	13

1.0 INTRODUCTION

The Jamaica Constabulary Force (JCF) continues to evaluate its Human Rights and Police Use of Force and Firearms Policy with the aim of incorporating emerging techniques and technologies to enhance officer and public safety. Accordingly, the organization has placed increased emphasis on putting into greater use less lethal options geared towards the management of on-going and/or emerging public order situations and breaches of the peace.

One such effort is to adopt Electronic Control Weapons (ECWs) as a tool to more effectively manage public order situations and breaches of the peace. Electronic Control Weapons offer members of the JCF options to use force that is objectively reasonable to effectively bring an incident under control, while protecting the safety of the public, subject, member and others.

2.0 PURPOSE

This document outlines the JCF's policy and standard operating procedures for the acquisition, management and disposal of ECWs.

3.0 SCOPE

This policy and standard operating procedures applies to all sworn and unsworn members (including contractors), and covers the acquisition, deployment, use, maintenance and disposal of ECWs in the JCF.

4.0 ABBREVIATION AND ACRONYMS

ECW - Electronic Control Weapons

PECC - Police Emergency Control Centre

IPOB - Inspectorate of Professional Standards and Oversight Bureau

5.0 DEFINITIONS

Active Resistance - The use of non-assaultive physical measures including flight by unarmed subjects in order to resist and/or prevent a member from gaining control

Arc – Pulling the ECW's trigger in order to activate the weapon without discharging the probes. This may be done as a warning to the subject or to test the ECW prior to deployment (sometimes referred to as a spark test).

Cartridge - A replaceable vessel that generally contains compressed gas, probes, connecting wires, and confetti tags, that fires probes sending a high voltage/low current signal into a subject upon impact.

Competent Member - Any member of the JCF who has received the prescribed training, certification and/or biennial recertification, and is authorized to carry and use ECW

Cycle - The period during which electrical impulses are emitted from the ECW following activation. In most models, a standard cycle is 5 seconds for each activation. The duration of a cycle may be shortened by turning the ECW off but may be extended in certain models by the continuing pulling of the trigger

Electronic Control Weapon (ECW) - A device that uses electricity to impair voluntary muscular responses or to cause discomfort in order to gain compliance; overcome resistance; or capture, control, and facilitate constraint

Elevated Risk Population - Individuals who are potentially at greater risk of injury or death following exposure to an ECW. These include those who reasonably appear or, are known to be elderly, medically infirm, pregnant, users of internal cardiac devices, or who have low body mass, such as small children

Probes - Projectiles with wires contained in an ECW cartridge. When the ECW is discharged, probes are expelled on connecting wires that penetrate the subject's clothing and/or skin, allowing application of the electric impulse.

Passive Resistance - A refusal by an unarmed person not reasonably perceived to be an immediate threat or flight risk to comply with a member's verbal commands or physical control techniques that do not involve the use of physical force, control, or resistance of any kind

Secondary Injury – Any unintended injury sustained by a subject during the application of an ECW. These include but are not limited to: injuries sustained from falling and ignition due to presence of a flammable substance

6.0 ROLES AND RESPONSIBILITIES

6.1 Divisional Commander

The Divisional Commander shall:

- 6.1.1 cause an investigation to be immediately conducted on all occasions where ECWs have been used, damaged, lost, stolen or missing;
- 6.1.2 cause an investigation to be immediately conducted on all complaints of use, misuse and/or abuse of ECWs;
- 6.1.3 submit a written report within 24 hours to the Inspector General, (IPROB) on all occasions where ECWs have been used, damaged, lost, stolen or missing, or where there are complaints of use, misuse and/or abuse;

6.1.4 ensure monthly inspections and proper inventory management of ECWs, and a return forwarded to the Inspector General IPROB, Assistant Commissioner of Police, Services Branch and Headquarters Armoury by the 7th of each month; and

6.1.5 ensure that the Division has sufficient number of competent members.

6.2 Competent Members

The competent member shall:

6.2.1 ensure that the ECW is in good working condition by performing the requisite function checks upon issue;

6.2.2 ensure the safe handling of the ECW;

6.2.3 inform the Police Emergency Control Centre (PECC) upon being dispatched that he/she is equipped with ECW;

6.2.4 as soon as is practicable, inform the PECC and immediate supervisor on all occasion in which the ECW is used;

6.2.5 make an immediate assessment and seek medical attention for the subject in keeping with requirements at ***Post-Deployment Procedure*** at **Section 7.3** of this policy.

6.2.6 upon use of the ECW, remove or cause the probe(s) to be removed from the subject in instances where contacts were made in non-sensitive areas of the body;

6.2.7 upon using of the ECW, take subject to the nearest medical facility to have probe(s) removed in cases where contacts were made in sensitive areas of the body;

6.2.8 retrieve and retain probes and cartridges after use;

6.2.9 hand over all ECWs, cartridges and holster on conclusion of duty; and

6.2.10 submit written report(s), as soon as practicable or not exceeding nine (9) hour after the ECWs have been used, damaged, lost or discovered stolen or missing.

6.3 Station Commander/Station Officer/the Sub-officer in charge

Electronic Control Weapons Policy and Standard Operating Procedures

The Station Commander/Station Officer/the Sub-officer in charge shall:

- 6.3.1 ensure that an entry is made in the Station Diary of all the incidents in which the ECW was used;
- 6.3.2 make an initial report to the Commanding Officer and follow up with a written report within 12 hours;
- 6.3.3 ensure that ECWs are properly stored and batteries are kept at optimum charge in accordance with the manufacturers' guide;
- 6.3.4 ensure that the competent member to whom ECWs are issued performs the requisite function checks, and that loading and holstering are conducted in his/her presence;
- 6.3.5 ensure proper maintenance and safekeeping of all ECWs under his/her command or supervision;
- 6.3.6 maintain proper inventory of all ECWs and record keeping of the Jamaica Constabulary Force Electronic Control Weapon Register; and
- 6.3.7 upon conclusion of duty, accept and inspect the ECW handed over by competent members and make an entry in the Station Diary and the Jamaica Constabulary Force Electronic Control Weapon Register

6.4 IPROB

The Inspector General, IPROB shall:

- 6.4.1 monitor and ensure compliance of this policy;
- 6.4.2 investigate all complaints of misuse and/or abuse; reports of damaged, lost, stolen or missing ECWs; and make recommendation(s) for appropriate action; and
- 6.4.3 provide strategic oversight for the management of the ECWs.

6.5 Planning, Research and Development Branch (PRDB)

The Director, PRDB shall:

- 6.5.1 conduct research in the development and usage of ECWs and related technologies in law enforcement;
- 6.5.2 utilize research data of the ECWs to inform internal and external stakeholders of relevant findings, recommend best practices, and latest enhancements in ECWs;
- 6.5.3 conduct biennial review of this policy or as may be required.

6.6 Training

The Assistant Commissioner of Police in charge, Training shall:

6.6.1 develop and administer a programme of training, certification and re-certification of users of ECWs.

6.6.2 conduct sensitization workshop for managers and supervisors.

7.0 POLICY STATEMENTS

The management of ECWs within the JCF shall incorporate best known practices as advanced by, but not limited to: the Constitution of Jamaica, the Universal Declaration of Human Rights, all relevant local laws, the Jamaica Constabulary Force's Human Rights and Police Use of Force and Firearms, Ethics and Integrity and Police Public Interaction Policies and Standard Operating Procedures.

It is the policy of the JCF that:

- 7.1 ECWs shall be used in self-defense or defense of others;
- 7.2 ECWs may be used in cases of Active Resistance where the subject is exhibiting active aggression or is actively resisting in a manner that, in the competent member's judgment, is likely to result in injuries to self or others or is likely to result in the prevention of the lawful apprehension of the subject;
- 7.3 in exceptional circumstances, ECWs may be used in cases of Passive Resistance or handcuffed subjects, **only** if justified by the need to protect subjects, bystanders, or members;
- 7.4 the use of ECWs shall accord with the principle of proportionality; that is, the anticipated injury or harm to be prevented is equal to, or greater than the harm which is likely to be caused by the use of the ECW, and that law enforcement objective cannot be achieved by a lesser degree of force;
- 7.5 only competent members shall be issued with and/or use ECWs;
- 7.6 ECWs shall be carried in the approved holster;
- 7.7 ECWs shall be managed in accordance with their manufacturers' guide;
- 7.8 ECWs should be used as a tool of need and not one of convenience. This means that members should not over-rely on ECWs in situations where more effective alternatives which use a lesser degree of force, such as verbal de-escalation, are available and appropriate. The ECW may be used when other less-lethal options are not practical, or their use will not achieve the desired law enforcement objective;
- 7.9 ECWs shall not normally be used on the Elevated Risk Population; however, in exceptional cases, the devices may be used only if justified by: i) the need to protect

subjects, bystanders, or members from imminent physical harm; or ii) the need to effect the lawful apprehension of the subject in circumstances of active resistance;

- 7.10** ECWs shall not be placed in the position where the member usually carries, or is expected to carry his/her firearm;
- 7.11** ECWs shall not be intentionally aimed at sensitive areas of the body such as the face, eyes, head, throat, female breasts, groin, genital, or known pre-existing injury areas;
- 7.12** the management of ECWs shall be of such that it minimizes the likelihood of multiple users on a single subject.
- 7.13** where the subject requires medical attention, JCF member shall inform the medical personnel conducting evaluation that the subject experienced ECW activation.
- 7.14** there shall be a Jamaica Constabulary Force Electronic Control Weapon Register within which the record of all issuing and receiving of ECWs shall be entered.

8.0 STANDARD OPERATING PROCEDURES

8.1 Deployment of ECW

The following procedures must be adopted when using ECWs:

- 8.1.1** all ECWs must be treated as loaded even if it is without the cartridge.
- 8.1.2** before deployment, competent members must consider the totality of circumstances such as: the subject movement, officer's visibility and ability to accurately deploy the device, the risk of accidental contact with unintended sections of the body or other persons and the likelihood of secondary injury;
- 8.1.3** members should never pull a firearm and an ECW at the same time;
- 8.1.4** the ECW and police canine should never be deployed simultaneously on a subject;
- 8.1.5** competent members issued with an ECW must also be issued with the appropriate medical kit;
- 8.1.6** as far as is practicable, competent members should issue the following verbal warning prior to deployment: 'Taser Taser Taser'. During this warning, competent members should also activate the arc mechanism of the device;
- 8.1.7** after the verbal warning, a reasonable amount of time should be allowed for the subject to comply, unless giving time to comply will increase the risk of

injury to subject, members or others or prevent the lawful apprehension of the subject;

8.1.8 in the event there is the need to use an ECW, it shall be discharged for an initial five second cycle;

8.1.9 after the initial cycle, in the event that the subject appears to be incapacitated, members must act quickly and effectively in order to control the subject; and

8.1.10 in the event the subject does not appear to be incapacitated and the situation is still unresolved, the competent member may consider further secondary deployments each lasting in five seconds duration.

8.1.11 the subject should not be exposed to more than three ECW cycles, that is, fifteen seconds of electric discharge. More than three ECW cycles may increase the risk of serious injury or death.

8.2 The Following are Prohibited

8.2.1 ECWs shall not be used against subjects in physical control of a vehicle in motion

8.2.2 ECWs should not be used when a subject is in an elevated position where a fall may cause substantial injury or death.

8.2.3 ECWs shall not be used in the known presence of combustible vapors and liquids or other flammable substances.

8.3 Post – Deployment

Members shall obtain medical assistance for subjects if any of the following occurs:

8.3.1 the subject requests medical attention;

8.3.2 the subject received secondary injury;

8.3.3 the probe made contact with a sensitive area of the body;

8.3.4 there is difficulty removing the expended probes from the body;

8.3.5 the subject does not appear to be recovering in a manner consistent with training and experience;

8.3.6 the subject is part of the Elevated Risk Population;

8.3.7 the subject has been exposed to three or more ECW cycles;

8.3.8 the subject has been simultaneously exposed to the effects of more than one ECW device; and

8.3.9 the subject reasonably appears to be affected by mental illness or is in medical distress

8.4 Management of ECW

8.4.1 An entry must be made in the *Jamaica Constabulary Force Electronic Control Weapon Register* as indicated in **Appendix 1** on every account in which the ECW is issued. The entry should contain:

- consecutive number

- date and time issued
- type and serial number of ECW
- serial number of cartridge(s)
- number of cartridges
- serial number of holster issued
- diary entry reference number
- name of person receiving
- rank and regulation number of person receiving
- signature of person receiving
- name and signature of person issuing
- Remarks

8.4.2 An entry must be made in the ***Jamaica Constabulary Force Electronic Control Weapon Register*** as indicated in **Appendix 2** on every account in which the ECW is returned. The entry should contain:

- consecutive number
- date and time returned
- type and serial number of ECW
- serial number of cartridges
- number of cartridges
- serial number of holster returned
- diary entry reference number
- name of person returning
- rank and regulation number of person returning
- signature of person returning
- name and signature of person receiving
- remarks

8.4.3 An entry must be made in the Station Diary dispatching the competent member on duty with the ECW on each occasion. The entry must contain *inter alia*, name(s), rank and regulation number of persons in possession, serial number of weapon, holster and cartridges, number of cartridges, nature of duty, signature of person making the entry;

8.4.4 An entry must be made in the Station Diary whenever the member concludes duty with the ECW on each occasion. The entry must contain *inter alia*, name(s), rank and regulation number of persons returning, serial number of weapon, holster and cartridges, number of cartridges, nature of duty performed, whether or not the ECW was used and the circumstances surrounding its use and signature of person making the entry;

8.4.5 A written report must be submitted within 24 hours on all accounts in which the ECW has been used. The report must contain *inter alia* the circumstances in which the ECW was used, subsequent actions and a recommendation for replacement of cartridges;

- 8.4.6 A detailed entry must be made in the Station Diary followed by a report in circumstances where an ECW is stolen, damaged, lost or missing. Stolen, damaged, lost or missing ECWs must become the subject of thorough investigation, and a report submitted to the Inspectorate and Professional Standards Oversight Bureau (IPROB).

9.0 LEGISLATIVE AUTHORITIES

- 9.1** This policy and SOP must be read in conjunction with the following:
- 9.2** JCF Human Rights Use of Force and Firearm Policy
- 9.3** JCF Police Public Interaction Policy

10.0 RELEVANT RECORDS AND FORMS

- 10.1** JCF Electronic Control Weapons (ECWs) Register Issue
- 10.2** JCF Electronic Control Weapons (ECWs) Register Return

APPENDIX 1: JCF Electronic Control Weapons (ECWs) Register Issue

J.C.F. ELECTRONIC CONTROL WEAPON (ECW) REGISTER ISSUE												
Cons. #	Date & Time Issued	Type of ECW	ECW Serial Number	No. of Cartridge s	Cartridge Serial Number	Serial Number of Holster Issued	Diary Entry #	Name of Person Receiving	Rank & Reg. Number of Person Receiving	Sign. of Person Receiving	Name & Sign. of Person Issuing	Remarks

APPENDIX 2: JCF Electronic Control Weapons (ECWs) Register Return

J.C.F. ELECTRONIC CONTROL WEAPON (ECW) REGISTER RETURN												
Cons.#	Date & Time Returned	Type of ECW	ECW Serial Number	No. of Cartridges	Cartridge Serial Number	Serial Number of Holster Returned	Diary Entry #	Name of Person Returning	Rank & Reg. Number of Person Returning	Sign. of Person Returning	Name & Sign of Person Receiving	Remarks